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#15

KALLIMANIS, ET AL. v. OLIVERA, ET AL.

CASE NO.: 25NWCV01847

HEARING: Tuesday, September 15, 2026, at 9:30 AM

Defendant MARTHA OLIVERA's Demurrer to Plaintiff's First Amended Complaint is SUSTAINED without leave to amend.

Moving Party to give notice.

Background

On May 22, 2025, Plaintiff Alexandria Kallimanis, as Guardian Ad Litem for Ethan Sohn ("Plaintiff" or "Sohn") filed this action against Defendants Martha Olivera ("Olivera") and ABC Unified School District ("District") alleging the following causes of action: (1) First Amendment Retaliation, (2) Bane Act, (3) Defamation, (4) Negligence, and (5) Negligent Hiring, Supervision, Training, and Retention.

On October 13, 2025, Defendant District filed a demurrer with motion to strike. On March 25, 2026, the Court sustained District's demurrer with leave to amend and noted that the motion to strike is moot.

On April 16, 2026, Plaintiff filed a First Amended Complaint ("FAC") asserting the same causes of action.

On May 20, 2026, Olivera filed the instant Demurrer to the FAC ("Demurrer"). Plaintiff filed an Opposition on September 1, 2026, and Olivera filed a Reply on September 8, 2026.

Legal Standard

A demurrer is a pleading that may be used to test the legal sufficiency of the factual allegations in the complaint. (Code Civ. Proc., §430.10.) There are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction. (Code Civ. Proc., §430.10, subd. (e); *McKenney*, 167 Cal.App.4th at 77.) Such demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (Code Civ. Proc., §§430.30, 430.70; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) For the purpose of testing the sufficiency of the cause of action, the Court admits “all material facts properly pleaded” and “matters which may be judicially noticed,” but does not consider contentions, deductions, or conclusions of fact or law. (*Blank*, 39 Cal.3d at 318.) It gives these facts “a reasonable interpretation, reading it as a whole and its parts in their context.” (*Ibid.*) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (*Semole v. Sansoucie* (1972) 28 Cal. App. 3d 714, 721.) The face of the complaint includes exhibits attached to the complaint. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) “If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence.” (*Holland v. Morse Diesel Internat., Inc.* (2001) 86 Cal.App.4th 1443, 1447.)

Moreover, Code of Civil Procedure section 430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., §430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration stating either (1) the means by which the parties met and conferred and that the parties did not reach an agreement to resolve the issues raised in the demurrer or (2) the party that filed the pleading failed to respond to the meet and confer request or otherwise failed to meet and confer in good faith. (Code Civ. Proc., §430.41, subd. (a)(3).)

Meet and Confer

Per Code of Civil Procedure section 430.41, subdivision (a)(1), Olivera was required to meet and confer with Plaintiff before bringing this demurrer. Defense counsel declares that on May 7, 2026, he met and conferred with Plaintiff’s counsel via telephone call, but the parties were unable to reach an agreement. (Declaration of Andrew S. McEwan, ¶13.) Defense counsel also sent a meet and confer letter following the telephone conversation. (*Id.* at ¶4, Ex. A.) The Court finds that the meet and confer requirement has been satisfied.

Second Cause of Action – Violation of the Bane Act

Defendant Olivera demurs to the second cause of action for violation of the Bane Act for failure to state sufficient facts to constitute a cause of action. Olivera argues that all conduct attributed to Olivera consisted solely of speech that did not threaten violence, and therefore cannot support a Bane Act claim under section 52.1, subdivision (k). Moreover, Plaintiff has failed to show that Olivera’s alleged threats, intimidation, or coercion were independent from the underlying constitutional violation.

In opposition, Plaintiff argues the FAC adequately pleads ultimate facts and reasonable inferences showing intimidation and coercion, including exclusion from class, messages discouraging wearing the sweatshirt, and Olivera’s widely disseminated Google Classroom post accusing Plaintiff of a “hate crime,” all of which chilled his political expression. Plaintiff contends the “independence” requirement is not a pleading bar and the coercive element need not be independent; alternatively, he argues the Google Classroom message was distinct conduct.

In her Reply, Olivera argues that Plaintiff fails to address Civil Code section 52.1, subdivision (k), which independently bars Bane Act liability based on speech alone without a threat of violence, and reiterates there is no allegation Olivera threatened violence or had apparent ability to carry out violence.

A claim for violation of the Bane Act can be brought by an individual against a private person, where that person interferes with the Plaintiff's legal rights by threat, intimidation, or coercion. (Civ. Code § 52.1(a), (b).) To allege a cause of action under Civil Code section 52.1, the plaintiff must allege that "the defendant interfered with or attempted to interfere with the plaintiff's legal right by threatening or committing violent acts." (Doe v. State (2017) 8 Cal.App.5th 832, 842, overruled on other grounds by Leon v. County of Riverside (2023) 14 Cal.5th 910.)

"[A] plaintiff need not allege the defendant acted with discriminatory animus or intent; a defendant is liable if he or she interfered with the plaintiff's constitutional rights by the requisite threats, intimidation, or coercion." (O'Toole v. Superior Court (2006) 140 Cal.App.4th 488, 502.) "The statute requires a showing of threatening conduct independent from the alleged interference or violation of a civil right." (Doe, 8 Cal.App.5th at 842-43.) "[A] wrongful arrest and detention, without more, cannot constitute 'force, intimidation, or coercion' for purposes of section 52.1." [Citation.] (Id. at 843.)

According to Civil Code section 52.1, subdivision (k), "[s]peech alone is not sufficient to support an action brought pursuant to subdivision (b) or (c), except upon a showing that the speech itself threatens violence against a specific person or group of persons; and the person or group of persons against whom the threat is directed reasonably fears that, because of the speech, violence will be committed against them or their property and that the person threatening violence had the apparent ability to carry out the threat."

According to the FAC, on November 6, 2024, Plaintiff wore a red sweatshirt to Cerritos High School printed with the slogan "Make America Great Again." (FAC, ¶11.) During Spanish class, the teacher Defendant Olivera told him that he was not supposed to wear the sweatshirt and shortly thereafter, "[t]he security guard escorted SOHN out of the class in front of the entire student population in the classroom" to Vice Principal Dr. Chang-Seo's office. (Id. at ¶¶13-14.) Principal Crechena Wise ("Principal") and Dr. Chang-Seo met with Plaintiff and informed him that wearing the sweatshirt did not constitute a school violation; Plaintiff was escorted back to the classroom to finish class. (Id. at ¶14.) When Plaintiff returned to the classroom, Defendant Olivera "suddenly walked out of the classroom and refused to continue regular instruction" and thereafter, the Principal told Plaintiff that "I can't tell you to take off your sweatshirt, but it would be better if you did." (Id. at ¶15.) The following day, Olivera corresponded with all of the students she taught at the school using Google Classroom and stated "MAGA shirts, sweaters and hats represent a deep hatred of minorities, women, non-Christian religion and LGBTQ+ and in my opinion are a HATE crime when worn at school, which is done in order to intimidate any of The aforementioned minorities." (Id. at ¶16.) Copies of this correspondence were allegedly shared on social media sites, viewed by tens of thousands of times by the general public, and widely covered in local, national, and international media. (Id. at ¶17.) Plaintiff found himself falsely accused and humiliated. (Id. at ¶18.)

The FAC further alleges that pursuant to Government Code section 820, Olivera is liable as a public employee. (FAC, ¶25.) The alleged retaliatory actions were committed by threats, intimidation, and/or coercion, including, but not limited to, excluding Plaintiff from the classroom and accusing him, in a widely disseminated email that reached national media, of committing a "hate crime" and harboring hatred toward minorities, women, non-Christian religion and LGBTQ+ on the basis of his apparel. (Id. at ¶26.) Plaintiff understood the Principal's statement and similar verbal messages from various District employees, including Olivera, as "informing him that wearing the subject clothing again that he would be subjected to further harassment, intimidation, threats, and/or other similar derogatory remarks from staff." (Id. at ¶27.) The exclusion of Plaintiff from the classroom for his political expression, telling him it would "be better" to remove his sweatshirt, and accusing him before the student community of committing a "hate crime" and harboring "deep hatred" toward certain groups were intimidating acts by District employees. (Id. at ¶28.)

The Court finds that the allegations in the FAC demonstrate that the claim against Olivera is based entirely on speech. Specifically, Plaintiff alleges that Olivera: (1) told Plaintiff that he was not supposed to wear the sweatshirt; (2) walked out of the classroom after Plaintiff returned; and (3) corresponded with her students through Google Classroom regarding similar apparel without mentioning Plaintiff by name. The FAC does not allege that Olivera personally removed Plaintiff from the classroom or demanded that he remove his sweatshirt. Nor does it allege that Olivera threatened to remove Plaintiff from school, discipline him, or impose any consequence if he continued wearing the sweatshirt. None of these allegations involve threats of violence or conduct that could reasonably cause Plaintiff to fear that Olivera would commit violence against him. The FAC alleges only that Olivera expressed disapproval of the sweatshirt through verbal communication and a classroom message. Moreover, the allegations do not demonstrate that anything in the content of the Google Classroom message contained threats of violence against Plaintiff or any specific person.

Plaintiff's opposition argues that the intimidation or coercion need not be independent from the constitutional violation. However, this argument does not address the dispositive issue: whether the speech itself threatened violence as required by section 52.1, subdivision (k). The Court of Appeal's recent decision in *Animal Protection & Rescue League, Inc. v. County of Riverside* confirms that "speech alone is not sufficient to support an action" under the Bane Act "except upon a showing that the speech itself threatens violence against a specific person." (*Animal Protection & Rescue League, Inc. v. County of Riverside* (2025) 111 Cal.App.5th 914, 922.) Even assuming the Google Classroom message was distinct from the alleged interference with Plaintiff's First Amendment rights, Olivera's speech-based conduct cannot support a Bane Act claim because her actions did not threaten violence or any specific conduct against Plaintiff.

Moreover, Plaintiff's subjective understanding that he might face future "harassment, intimidation, threats, and/or other similar derogatory remarks" does not establish that Olivera's speech threatened violence. While intimidation or coercion can constitute violation of the Bane Act, it does not eliminate the requirement under section 52.1, subdivision (k) that speech-based claims must involve threats of violence.

Accordingly, Olivera's Demurrer to the FAC's Second Cause of Action is SUSTAINED.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on the Plaintiff to show the Court that a pleading can be amended successfully. (*Lewis v. Youtube, LLC* (2015) 244 Cal.App.4th 118, 226.)

Plaintiff has already amended the complaint once following District's successful demurrer to the original complaint. Despite that opportunity, the FAC still fails to allege that Olivera's conduct threatened violence against Plaintiff. The opposition does not identify any additional facts that could satisfy section 52.1, subdivision (k), asserting only in general terms that the pleading could be amended. Thus, Plaintiff has not met the burden of demonstrating a reasonable possibility that the defect can be cured.

Conclusion

Martha Olivera's Demurrer to the First Amended Complaint is SUSTAINED without leave to amend.

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Defendant ABC UNIFIED SCHOOL DISTRICT's Demurrer to Plaintiff's First Amended Complaint is SUSTAINED without leave to amend.

Moving Party to give notice.

Background

On May 22, 2025, Plaintiff Alexandria Kallimanis, as Guardian Ad Litem for Ethan Sohn ("Plaintiff" or "Sohn") filed this action against Defendants Martha Olivera ("Olivera") and ABC Unified School District ("District") alleging the following causes of action: (1) First Amendment Retaliation, (2) Bane Act, (3) Defamation, (4) Negligence, and (5) Negligent Hiring, Supervision, Training, and Retention.

On October 13, 2025, Defendant District filed a demurrer with motion to strike parts of the Complaint. On March 25, 2026, the Court sustained District's demurrer with leave to amend and noted that the motion to strike is moot.

On April 16, 2026, Plaintiff filed a First Amended Complaint ("FAC") asserting the same causes of action.

On May 7, 2026, District filed the instant Demurrer to the FAC ("Demurrer"). Plaintiff filed an Opposition on September 1, 2026, and District filed a Reply on September 4, 2026. Although the reservation identifies a demurrer with a motion to strike, a motion to strike has not been filed.

Legal Standard

A demurrer is a pleading that may be used to test the legal sufficiency of the factual allegations in the complaint. (Code Civ. Proc., §430.10.) There are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction. (Code Civ. Proc., §430.10, subd. (e); *McKenney*, 167 Cal.App.4th at 77.) Such demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (Code Civ. Proc., §§430.30, 430.70; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) For the purpose of testing the sufficiency of the cause of action, the Court admits "all material facts properly pleaded" and "matters which may be judicially noticed," but does not consider contentions, deductions, or conclusions of fact or law. (*Blank*, 39 Cal.3d at 318.) It gives these facts "a reasonable interpretation, reading it as a whole and its parts in their context." (*Ibid.*) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (*Semole v. Sansoucie* (1972) 28 Cal. App. 3d 714, 721.) The face of the complaint includes exhibits attached to the complaint. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) "If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence." (*Holland v. Morse Diesel Internat., Inc.* (2001) 86 Cal.App.4th 1443, 1447.)

Moreover, Code of Civil Procedure section 430.41 requires that "[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., §430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration stating either (1) the means by which the parties met and conferred and that the parties did not reach an agreement to resolve the issues raised in the demurrer or (2) the party that filed the pleading failed to respond to the meet and confer request or otherwise failed to meet and confer in good faith. (Code Civ. Proc., §430.41, subd. (a)(3).)

Meet and Confer

Per Code of Civil Procedure section 430.41, subdivision (a)(1), District was required to meet and confer with Plaintiff before bringing this demurrer. Defense counsel declares that on May 6, 2026, she met and conferred with Plaintiff's counsel via Zoom, but the parties were unable to reach an agreement. (Declaration of Nancy P. Doumanian, ¶¶1-2.) The Court finds that the meet and confer requirement has been satisfied.

Second Cause of Action – Violation of the Bane Act

District demurs to the second cause of action for failure to state facts sufficient to constitute a claim under Civil Code section 52.1. District argues that the FAC still does not allege an actionable threat, intimidation, or coercion distinct from the asserted interference with Plaintiff's political expression. According to District, Plaintiff was returned to class, the principal's statement

was advisory rather than coercive, and no employee threatened punishment, suspension, physical force, exclusion, or another adverse consequence if Plaintiff continued wearing the subject sweatshirt. District further contends that Plaintiff's subjective understanding of the statements does not transform them into objectively coercive conduct.

In opposition, Plaintiff argues that the newly added allegations, considered together, establish intimidation and coercion occurring in response to Plaintiff's political expression. Plaintiff relies on the combination of Plaintiff's removal from class, the principal's statement that it would be "better" to remove the sweatshirt, and Defendant Olivera's accusation that Plaintiff's clothing represented hatred and constituted a hate crime.

A claim for violation of the Bane Act can be brought by an individual against a private person, where that person interferes with the Plaintiff's legal rights by threat, intimidation, or coercion. (Civ. Code § 52.1(a), (b).) To allege a cause of action under Civil Code section 52.1, the plaintiff must allege that "the defendant interfered with or attempted to interfere with the plaintiff's legal right by threatening or committing violent acts." (Doe v. State (2017) 8 Cal.App.5th 832, 842, overruled on other grounds by Leon v. County of Riverside (2023) 14 Cal.5th 910.)

"[A] plaintiff need not allege the defendant acted with discriminatory animus or intent; a defendant is liable if he or she interfered with the plaintiff's constitutional rights by the requisite threats, intimidation, or coercion." (O'Toole v. Superior Court (2006) 140 Cal.App.4th 488, 502.) "The statute requires a showing of threatening conduct independent from the alleged interference or violation of a civil right." (Doe, 8 Cal.App.5th at 842-43.) "[A] wrongful arrest and detention, without more, cannot constitute 'force, intimidation, or coercion' for purposes of section 52.1." [Citation.] (Id. at 843.)

On March 25, 2026, the Court sustained District's demurrer to the second cause of action on the basis that the original Complaint failed to demonstrate District's employees intentionally interfered with Plaintiff's constitutional or statutory rights through threats, intimidation, or coercion. Although Plaintiff was removed from the classroom, he was immediately brought back in. The Court also noted that Plaintiff failed to demonstrate how Defendant Olivera's email interfered with his legal rights by threat, intimidation, or coercion.

Plaintiff filed the operative First Amended Complaint ("FAC"). According to the FAC, on November 6, 2024, Plaintiff wore a red sweatshirt to Cerritos High School printed with the slogan "Make America Great Again." (FAC, ¶11.) During Spanish class, the teacher Defendant Olivera told him that he was not supposed to wear the sweatshirt and shortly thereafter, "[t]he security guard escorted SOHN out of the class in front of the entire student population in the classroom" to Vice Principal Dr. Chang-Seo's office. (Id. at ¶¶13-14.) Principal Crechena Wise ("Principal") and Dr. Chang-Seo met with Sohn and informed him that wearing the sweatshirt did not constitute a school violation; Plaintiff was escorted back to the classroom to finish class. (Id. at ¶14.) When Plaintiff returned to the classroom, Defendant Olivera "suddenly walked out of the classroom and refused to continue regular instruction" and thereafter, the Principal told Plaintiff that "I can't tell you to take off your sweatshirt, but it would be better if you did." (Id. at ¶15.)

The FAC further alleges that pursuant to Government Code section 815.2, the District is vicariously liable for the acts or omissions of its employees, officers, and agents, committed within the course and scope of employment. (FAC, ¶25.) The alleged retaliatory actions were committed by threats, intimidation, and/or coercion, including, but not limited to, excluding Plaintiff from the classroom and accusing him, in a widely disseminated email that reached national media, of committing a "hate crime" and harboring hatred toward minorities, women, non-Christian religion and LGBTQ+ on the basis of his apparel. (Id. at ¶26.) Plaintiff understood the Principal's statement and similar verbal messages from various District employees, including Olivera, as "informing him that wearing the subject clothing again that he would be subjected to further harassment, intimidation, threats, and/or other similar derogatory remarks from staff." (Id. at ¶27.) The exclusion of Plaintiff from the classroom for his political expression, telling him it would "be better" to remove his sweatshirt, and accusing him before the student community of committing a "hate crime" and harboring "deep hatred" toward certain groups were intimidating acts by District employees. (Id. at ¶28.)

The Court finds that the FAC does not cure the defects noted in the Court's prior ruling. The FAC adds that Plaintiff interpreted statements by District employees to mean that wearing the sweatshirt would subject him to further harassment, intimidation, threats, or derogatory remarks; however, these facts do not include an express threat of punishment or other adverse action by the Principal or Olivera if Plaintiff chose to continue wearing the sweatshirt. The Court's prior determination

that Olivera's statements could possibly be sufficient to plead defamation does not itself establish that the same statements constitute threats, intimidation, or coercion.

Accordingly, the District's Demurrer to the FAC's Second Cause of Action is SUSTAINED.

Fifth Causes of Action – Negligent Hiring, Supervision, and Retention

District also demurs to the fifth cause of action for failure to state facts sufficient to constitute a claim for negligent hiring, supervision, and retention. District argues that the FAC continues to allege direct institutional negligence by the District rather than negligence by an identified District employee for which the District could be held vicariously liable. It also argues that the allegations of "past complaints" and "similar retaliatory acts" are conclusions unsupported by facts identifying the prior incidents, their timing, their substance, the employees who received notice, or the particular risk allegedly disclosed.

In opposition, Plaintiff argues that the FAC sufficiently alleges District's actual or constructive awareness that Olivera regularly injected political beliefs into her classroom management and communications. Plaintiff contends that further particulars concerning prior misconduct and complaints are evidentiary facts obtainable through discovery.

"[A]n employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee." (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054.) To establish a cause of action for negligent hiring, retention, or supervision, a plaintiff must show that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm occurs. (See Z.V. v. County of Riverside (2015) 238 Cal.App.4th 889, 902; Doe, supra, 50 Cal.App.4th at 1054.)

California Government Code section 815 provides that "[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person" except as provided by statute. (Gov. Code §815(a); see Hoff v. Vacaville Unified School Dist. (1998) 19 Cal.4th 925, 932.) In de Villers, the Court held that "We find no relevant case law approving a claim for direct liability based on a public entity's allegedly negligent hiring and supervision practices." (de Villers v. County of San Diego (2007) 156 Cal.App.4th 238, 252.) However, school personnel have a duty to protect students from harm, which includes an obligation to exercise ordinary care in hiring, training, supervising, and discharging school personnel. (C.A. v. Williams S. Hart Union High School Dist. (2012) 53 Cal. 4th 861, 874.) In C.A., the Court held that, "Plaintiff alleges the District's administrators and employees knew or should have known of Hubbell's dangerous propensities, but nonetheless hired, retained and failed to properly supervise her. These allegations, if proven, could make the District liable under a vicarious liability theory encompassed by section 815.2." (Id. at 875.)

On March 25, 2026, the Court sustained District's demurrer to the fifth cause of action with leave to amend on the basis that the original Complaint did not allege facts demonstrating that the District's employees knew or should have known that hiring Defendant Olivera created a particular risk or hazard.

According to the FAC, District is vicariously liable for its negligent failure to appropriately hire, retain, or supervise its employees. (FAC, ¶51.) "Defendants DISTRICT and DOES 1 to 20, have a duty of due care in the hiring, training, and supervision of its employees." (Id. at ¶52.) "Defendants DOES 1 to 20, were at all times employees and/or agents of Defendants DISTRICT, including, but not limited to administrators, supervisors, managers within the course and scope of their employment for the DISTRICT." (Id. at ¶53.) "Defendant DISTRICT negligently hired, supervised, trained, and retained Defendant TEACHER OLIVERA and other employees that failed to adequately carry out their employment duties, by not supervising Defendant TEACHER OLIVERA in accordance with DISTRICT's policies." (Id. at ¶54.) Plaintiff alleges that based on past complaints, District knew or should have known that Olivera was and/or became unfit to carry out her employment duties and should have been trained, reprimanded, and/or terminated. (Id. at ¶¶55-58, 62.)

The FAC adds that the Principal was aware that Olivera had removed Plaintiff from the classroom on the basis of his political expression, validated that exclusion, and informed Plaintiff that it would "better" if he took off his sweatshirt, instead of addressing Olivera's actions, which resulted in Olivera's subsequent email accusing Plaintiff of committing a hate crime. (Id.

at ¶¶60-61.)

The Court finds that the FAC does not plead the ultimate factual basis for its assertion that a District employee possessed pre-incident notice of the particular risk. The FAC alleges generally that Does 1 through 20 were District administrators, supervisors, or managers, but it does not allege what any such employee knew, when the employee learned it, or any negligent act or omission by that employee. Instead, the FAC repeatedly presents the conclusory allegations that District negligently hired, supervised, trained, or retained Olivera and that District knew or should have known of Olivera's lack of fitness to carry out her duties. Plaintiff also alleges that the Principal failed to discipline Olivera immediately after the classroom incident and that this failure "encouraged" the later posting. The FAC does not allege facts showing that the Principal knew Olivera intended to publish the posting, had reason to anticipate it, or had a reasonable opportunity to prevent it before its publication.

Accordingly, District's Demurrer to the Fifth Cause of Action is SUSTAINED.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy, (1976) 18 Cal.3d 335, 349.) The burden is on the Plaintiff to show the Court that a pleading can be amended successfully. (Lewis v. Youtube, LLC, (2015) 244 Cal.App.4th 118, 226.)

Here, Plaintiff does not identify additional facts concerning a threatened consequence or coercive act supporting the Second Cause of Action. Nor does it identify a prior complaint, a responsible District employee, the information known to that employee, or the time when the employee acquired such knowledge in support of the Fifth Cause of Action. Plaintiff has already amended the original Complaint after the Court identified the deficiencies in these causes of action. Given that Plaintiff has not described any further factual amendment that would cure the defects, the Court finds no demonstrated reasonable probability of a successful amendment.

Conclusion

ABC Unified School District's Demurrer to the First Amended Complaint is SUSTAINED without leave to amend.

Plaintiff's Motion to Compel Defendant ABC Unified School District to Provide Discovery Responses is GRANTED in PART.

The Motion is GRANTED as to Requests for Production Nos. 6, 10, and 13, subject to the limitations stated in the Court's ruling. Defendant must serve verified supplemental responses to Requests for Production Nos. 6, 10, and 13; produce all documents within its possession, custody, or control; or identify any documents that cannot be produced in compliance with Code of Civil Procedure section 2031.230, within 20 days of the Court's order.

The Motion is DENIED as MOOT as to Requests for Production Nos. 1 through 5, 8, 9, 11, 12, and 14.

Plaintiff's request for monetary sanctions is DENIED.

Moving Party to give notice.

Background

On May 22, 2025, Plaintiff Alexandria Kallimanis, as Guardian Ad Litem for Ethan Sohn ("Plaintiff" or "Sohn") filed this action against Defendants Martha Olivera ("Olivera") and ABC Unified School District ("District") alleging the following causes of action: (1) First Amendment Retaliation, (2) Bane Act, (3) Defamation, (4) Negligence, and (5) Negligent Hiring, Supervision, Training, and Retention.

On October 13, 2025, District filed a demurrer with motion to strike. On March 25, 2026, the Court sustained District's demurrer with leave to amend and noted that the motion to strike is moot.

On April 16, 2026, Plaintiff filed a First Amended Complaint ("FAC") asserting the same causes of action.

On August 12, 2026, Plaintiff filed the instant Motion to Compel District to Provide Discovery Responses and Request for Sanctions ("Motion"). On September 1, 2026, District filed an Opposition and on September 8, 2026, Plaintiff filed a Reply.

Motion

Plaintiff moves to compel the discovery responses of Defendant District and for monetary sanctions.

Plaintiff served Request for Production of Documents, Set One, on District on May 14, 2026. After receiving several extensions, District served its initial responses on July 23, 2026. The parties met and conferred and District agreed to provide supplemental responses; however, no responses were provided. Plaintiff filed this motion on August 12, 2026, seeking further responses or production concerning Request Nos. 1 through 6 and 8 through 14, together with monetary sanctions in the amount of \$3,500. Plaintiff's counsel declares that, prior to filing the Motion, he attempted to meet and confer with Defendant's counsel regarding the deficiencies in the responses; however, Defendant's counsel has sought several extensions and not provided sufficient responses. (Declaration of Alex Coolman, ¶¶3-4.)

On August 24, 2026, while the instant Motion was pending, District served supplemental responses to the Requests for Production and produced additional documents. The parties thereafter continued to meet and confer. Their discussions substantially narrowed the matters requiring decision.

Plaintiff's Reply acknowledges that the alleged deficiencies concerning Request for Production Nos. 1 through 5, 8, 9, 11, 12, and 14 have been resolved for purposes of this motion. Accordingly, the motion is denied as moot as to Requests for Production Nos. 1 through 5, 8, 9, 11, 12, and 14.

Plaintiff also agrees that the disputes concerning the Google Classroom audit trail and the general sufficiency of District's supplemental responses have been resolved for purposes of this motion, except as to Request No. 10. Plaintiff reserves any contention concerning preservation or spoliation of electronically stored information for separate proceedings. The remaining substantive disputes concern Request for Production Nos. 6, 10, and 13.

Absence of Separate Statement

Pursuant to California Rules of Court, rule 3.1345(a), "[a]ny motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement" including a motion to compel further responses to demand for production. Although Plaintiff identified the instant Motion as an initial motion to compel discovery, District had served initial responses and subsequently served supplemental responses. Thus, the Motion functions as a motion to compel further responses and requires the filing of a separate statement.

Although a separate statement has not been filed, the Court accepts Plaintiff's outline of the disputed discovery requests and responses in lieu of the separate statement, as allowed by Code of Civil Procedure section 2031.310, subdivision (b)(3).

Meet and Confer Requirement

Given that instant Motion functions as a motion to compel further responses, a meet and confer declaration is required pursuant to Code of Civil Procedure section 2031.310, subdivision (b)(3). The Court finds that counsel Coolman's declaration regarding his efforts to meet and confer with District's counsel satisfies this requirement.

Discovery Disputes

1) Request for Production No. 6

Request for Production No. 6 seeks the following: "Any statements that were provided to YOU by Martha Olivera in connection with YOUR response to the INCIDENT."

Defendant's initial response: "Objection. The request seeks information that is contained in personnel records of Ms. Olivera and violates her privacy rights under the California Constitution as well as under Government Code section 6254. The school district is informed that counsel for Ms. Olivera's counsel and counsel for plaintiff are meeting and conferring about a protective order that may allow for the production of her personnel records and the district will honor any production agreed to by counsel. Also, this request is not relevant or reasonably calculated to lead to the discovery of admissible evidence."

Defendant has not provided a supplemental response to Request No. 6.

Plaintiff argues that District's responses were untimely and thus, District waived objections pursuant to Code of Civil Procedure section 2031.300, subdivision (a). Moreover, District cannot invoke Olivera's privacy rights on her behalf and refuse to comply with its own discovery obligations on this basis. Plaintiff also argues that personnel records are relevant to the allegations concerning the incident, a protective order is in place, and District has not asserted the basis for privacy or provided a privilege log.

The Court finds that District has waived its objections by failing to serve a timely response under Code of Civil Procedure section 2031.300.

Moreover, the Court finds that Request No. 6 is relevant and limited to Olivera's statements concerning a specific incident central to the litigation. Appropriate redaction of personal identifying information will protect legitimate privacy interests and the existing protective order reduces the risk of improper dissemination.

The Motion is granted as to Request for Production No. 6.

2) Request for Production No. 10

Request for Production No. 10 seeks the following: "Any and all responses that were made on Google Classroom to the Google Classroom posting of Martha Olivera in which she referred to 'ABCUSD's policy of neutrality NOT being neutral.'"

Defendant's initial response: "The defendant has conducted a diligent search and a reasonable inquiry has been made in an effort to comply with this demand, and is unable to comply with this demand because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party."

Defendant has not provided a supplemental response to Request No. 10.

Code of Civil Procedure section 2031.230 requires a party claiming inability to comply to affirm that it conducted a diligent search and reasonable inquiry, state the specific reason for its inability to comply, and identify any person or organization known or believed to possess the requested material. Here, District's response does not comply with section 2031.230.

Accordingly, the Motion is granted as to Request for Production No. 10. District shall serve a verified supplemental response in compliance with section 2031.230.

3) Request for Production No. 13

Request for Production No. 13 seeks the following: "The complete personnel file Martha Olivera, including applications, resumes, CVs, references, tests, assessments, evaluations, reviews, and any reprimands or corrective actions."

Defendant's initial response: "Objection. The request seeks information that is contained in personnel records of Ms. Olivera and violates her privacy rights under the California Constitution as well as under Government Code section 6254. The school district is informed that counsel for Ms. Olivera's counsel and counsel for plaintiff are meeting and conferring about a protective order that may allow for the production of her personnel records and the district will honor any production agreed to by counsel. Also, this request is not relevant or reasonably calculated to lead to the discovery of admissible evidence."

Defendant has not provided a supplemental response to Request No. 13.

Plaintiff argues that District's responses were untimely and thus, District waived objections pursuant to Code of Civil Procedure section 2031.300, subdivision (a). Moreover, District cannot invoke Olivera's privacy rights on her behalf and refuse to comply with its own discovery obligations on this basis. Plaintiff also argues that personnel records are relevant to the allegations concerning the incident, a protective order is in place, and District has not asserted the basis for privacy or provided a privilege log.

Certain personnel records may be relevant to Plaintiff's claims. Records concerning prior substantially similar conduct, complaints, investigations, discipline, training, or notice may bear directly on whether District knew or should have known of conduct relevant to Plaintiff's allegations. However, a request for the entire personnel file is overbroad. A complete file may contain personal and confidential information unrelated to any claim or defense, including benefit and payroll records, medical or leave information, personal contact information, references, and information concerning unrelated third parties. The existing protective order reduces, but does not eliminate, the need to limit production to relevant categories and permit appropriate redactions. The Court finds that a narrowly tailored production is warranted. (See *Riverside County Sheriff's Dept. v. Stiglitz* (2014) 60 Cal. 4th 624, 640 ("An officer's entire personnel file need not be presented for review, only materials of the type requested. This limitation balances privacy interests while permitting focused discovery.").)

Accordingly, the Motion is granted in part as to Request for Production No. 13. District shall produce the following personnel records:

(1) Records concerning the November 2024 incident alleged in this action, including complaints, internal communications, interviews, statements, investigations, findings, administrative actions, discipline, and corrective measures imposed or recommended because of the incident.

(2) Records from November 6, 2019, through November 6, 2024, concerning complaints, investigations, findings, reprimands, discipline, or corrective action involving conduct substantially similar to that alleged in this action.

District is not required to produce employment applications, résumés, general references, payroll records, benefit records, medical information, leave records, banking information, tax information, or other records unrelated to the categories identified above. District may also redact unrelated personally identifiable information but must identify the general nature of the redacted information without disclosure.

Monetary Sanctions

Plaintiff requests \$3,500 in attorney fees for 3.5 hours preparing the Motion and 1.5 hours preparing the Reply, at an hourly rate of \$700 per hour.

District argues that the request for monetary sanctions should be denied because the Notice does not identify the request for sanctions and does not identify a person, party, or attorney who should be sanctioned, as required by Code of Civil Procedure section 2023.040. Moreover, District's responses were delayed; however, District has produced substantial additional documents, met and conferred regarding the discovery, narrowed the dispute, and continued to invite Plaintiff to identify perceived problems with the supplemental responses. Thus, District acted with substantial justification such that the imposition of sanctions would be unjust.

The Court finds that District did not provide timely responses to the discovery, which contributed to Plaintiff's decision to file the instant Motion. However, throughout the process, District engaged in a meet and confer process with Plaintiff and on August 24, 2026, served verified supplemental responses along with additional documents. These efforts resolved most of the matters presented in the Motion. The remaining disputes involve legitimate questions concerning the relevance, scope, and privacy interests of the parties; thus, the Court has ordered a narrowed production.

Furthermore, Plaintiff has not identified each person, party, or attorney against whom sanctions were sought as required for an award of discovery sanctions under Code of Civil Procedure section 2023.040.

Based on the foregoing, the Court finds that the imposition of sanctions would be unjust. Plaintiff's request for monetary sanctions is denied.

Conclusion

Plaintiff's Motion to Compel Defendant ABC Unified School District to Provide Discovery Responses is GRANTED in PART.

The Motion is GRANTED as to Requests for Production Nos. 6, 10, and 13, subject to the limitations stated in the Court's ruling. Defendant must serve verified supplemental responses to Requests for Production Nos. 6, 10, and 13; produce all documents within its possession, custody, or control; or identify any documents that cannot be produced in compliance with Code of Civil Procedure section 2031.230, within 20 days of the Court's order.

The Motion is DENIED as MOOT as to Requests for Production Nos. 1 through 5, 8, 9, 11, 12, and 14.

Plaintiff's request for monetary sanctions is DENIED.